

“hope” (*k*), “do not doubt” (*l*), “be well assured” (*m*), “confide” (*n*), “have the fullest confidence” (*o*), “trust” (*p*), “trust and confide” (*q*), “have full assurance and confident hope” (*r*), be “under the firm conviction” (*s*), “in the full belief” (*t*), “well know” (*u*), or use such expressions as “of course the legatee will give” (*v*), “in consideration the legatee has promised to give” (*w*), [“to be applied as I have requested him to do” (*x*),] &c.; in these and similar cases, the intention of the testator is considered [*132] *imperative, and the devisee or legatee is bound, and may be compelled to give effect to the injunction (*a*). And though instances of this kind generally occur upon the construction of wills, the doctrine does not apply to wills exclusively, but has been extended also to settlements *inter vivos* (*b*).

(*k*) *Harland v. Trigg*, 1 B. C. C. 142; and see *Paul v. Compton*, 8 Ves. 380.

(*l*) *Parsons v. Baker*, 18 Ves. 476; *Taylor v. George*, 2 V. & B. 378; *Malone v. O'Connor*, Ll. & G. *temp.* Plunket, 465; and see *Sale v. Moore*, 1 Sim. 534.

(*m*) *Macey v. Shumer*, 1 Atk. 389; S. C. Amb. 520. See *Ray v. Adams*, 3 M. & K. 237.

(*n*) *Griffiths v. Adams*, 5 Beav. 241; and see *Shepherd v. Nottidge*, 2 J. & H. 766.

(*o*) See *Shovelton v. Shovelton*, 32 Beav. 143; *Wright v. Atkyns*, 17 Ves. 255, 19 Ves. 299, G. Coop. 111 T. & R. 143; *Webb v. Wools*, 2 Sim. N. S. 267; *Palmer v. Simmonds*, 2 Drew. 225; *Curnick v. Tucker*, 17 L. R. Eq. 320; *Le Marchant v. Le Marchant*, 18 L. R. Eq. 414.

(*p*) *Irvine v. Sullivan*, 8 L. R. Eq. 673.

(*q*) *Wood v. Cox*, 1 Keen, 317; S. C. 2 M. & C. 684; *Pilkington v. Boughey*, 12 Sim. 114.

(*r*) *Macnab v. Whitbread*, 17 Beav. 299.

(*s*) *Barnes v. Grant*, 2 Jur. N. S. 1127.

(*t*) *Fordham v. Speight*, 23 W. R. 782.

(*u*) *Bardswell v. Bardswell*, 9 Sim. 323; *Nowlan v. Nelligan*, 1 B. C. C. 489; *Briggs v. Penny*, 3 Mac. & Gord. 546, 3 De G. & Sm. 525; [but see the observations on *Briggs v. Penny* in *Stead v. Mellor*, 5 Ch. D. 225.]

(*v*) *Robinson v. Smith*, 6 Mad. 194; but see *Lechmere v. Lavie*, 2 M. & K. 198.

(*w*) *Clifton v. Lombe*, Amb. 519.

[(*x*) *Re Fleetwood*, 15 Ch. D. 594.]

[(*a*) A precatory trust in favour of children may be executed by limiting the interests of females to their separate use, for such a limitation effectually carries out the intention; *Willis v. Kymer*, 7 Ch. D. 181.]

(*b*) *Liddard v. Liddard*, 28 Beav. 266.

she shall think best”; *Finlay v. Fellowes*, 14 Chy. 66; trusting that she will make such disposition thereof as shall be just and proper among my children, no trust created; *Nelles v. Elliot*, 25 Chy. 329.